

25STCV11936 25STCV11936

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C07%2F27%2F2026

Source SHA-256: 5c89d2a366535e5450bbc215473f56f6d905a3d7faecba29822ff473320d7f5f

Case Number: 25STCV11936 Hearing Date: July 27, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/28/2026

CASE NUMBER: 25STCV11936

CASE NAME: Veronica Bautista

Garcia, et al. v. Janna Mercedes Jess, as Trustee of the Rojas Living Trust,

Dated August 7, 2015, et al.

MOVING PARTY: Defendant Janny Daza

OPPOSING PARTY: Plaintiff Veronica Bautista Garcia,

et al.

PROCEEDING: Motion to Strike

MOVING PAPERS: November 21, 2025

OPPOSITION: December 12, 2025

REPLY: March 04, 2026

RULING SUMMARY: Defendant

Daza's Motion to Strike is denied.

Background

On April 24, 2025, plaintiffs Jose Adan Gines Guevara; Veronica Bautista Garcia; Adan Gines Bautista; Nancy Gines Bautista; Jose Fidel Gines Guevara; Lesly Veronica Gines, a minor by and through her guardian ad litem, Veronica Bautista Garcia; Adrian Gines Bautista, a minor by and through her guardian ad litem, Veronica Bautista Garcia; Norma Pluma Mena; Joel Uriel Paredes, a minor by and through her guardian ad litem, Norma Pluma Mena; Roberto Isau Morales; and Maria Perez (collectively "Plaintiffs"), filed their Complaint against defendants Janna Mercedes Jess, as Trustee of the Rojas Living Trust ("Trustee Jess"), and Defendant Janny Daza ("Daza") and Does 1 to 100 (collectively "Defendants"), alleging causes of action for (1) Violation of Civil Code § 1942.4; (2) Tortious Breach of the Warranty of Habitability; (3) Private Nuisance; (4) Unfair Business and Professions in Violation of Civil Code § 17200 et seq.; (5) Negligence; and (6) Violation of Los Angeles Municipal Code § 45.33.

Plaintiffs allege that they are tenants at 604-606 1/2 East 23rd Street, Los Angeles, CA 90011 ("the Property"), and suffered uninhabitable housing conditions including structural deficiencies, defective plumbing, flooring and weather proofing, and vermin infestations. (Complaint ¶¶ 1, 4, 5, 6) Defendants are alleged to be the landlord, owner, management, or control of the Property. (Complaint ¶¶ 8, 11.)

On November 21, 2025, Daza filed a Motion to Strike. On December 12, 2025, Plaintiffs filed their Opposition. On March 04, 2026, Daza filed their Reply.

On April 14, 2026, Trustee Jess filed three items: (1) an Answer; (2) a Joinder to Daza's Motion to Strike; and (3) a Cross-Complaint against Daza, in their individual capacity as Co-Trustee of the Rojas Living Trust, alleging four causes of action for: Implied Indemnity, Equitable Indemnity, Contribution, and Declaratory Relief.

I.
Legal Standard

A.
Motion to Strike

Any party may

serve and file a motion to strike the whole or any part of the pleading. (Code Civ. Proc § 435.) The court may only grant a motion to strike as to “irrelevant, false, or improper matter[s] inserted in any pleading” or “any pleading not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court.” (Code Civ. Proc. § 436.) The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc. § 436.)

B.

Meet and Confer

Before filing a

motion to strike, the moving party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. (Code Civ. Proc § 435.5(a).) The moving party shall file and serve with the motion a declaration stating either the means by which the parties met and conferred, and that the parties failed to reach an agreement, or that the party who filed the pleading failed to respond to the meet and confer request. (Code Civ. Proc. § 435.5(a)(3)(A)-(B).) Accordingly, a determination by the court that the meet and confer requirement was insufficient shall not be grounds to grant or deny the motion to strike. (Code Civ. Proc. § 435.5(a)(4).)

Defendant’s

counsel, Yevgenya Arushayan (“Arushayan”), attests he attempted to meet and confer by email with Plaintiffs’ Counsel regarding the punitive damages request in Plaintiffs’ Complaint, but the parties were unable to meet and confer. (Arushayan Decl. §§ 2-3, Exh. A, Exh. B.)

The Court finds

that Daza has satisfied the statutory meet and confer requirement. The Court addresses the Motion to Strike on its merits.

II.

Discussion

Daza asserts

that the Complaint suffers a critical deficiency; primarily, that it fails to

properly allege facts sufficient to constitute oppression, fraud, or malice as required for the imposition of punitive damages. Daza contends that, at most, their conduct amounts to negligence. Daza moves to strike the portions of Plaintiffs' Complaint relating to Defendants' alleged oppressive, fraudulent, and/or malicious conduct.

In opposition,

Plaintiffs argue that the Complaint sufficiently alleges facts to allow a request for punitive damages because the Complaint alleges a specific, chronological history of conscious disregard for safety and statutory violations.

Daza reiterates

that their conduct does not rise to the standard of malice, oppression, or fraud required to support a claim for punitive damages. Daza's reply shifts focus to Plaintiffs' Fifth Cause of Action, highlighting that the facts alleged amount to negligence only as Plaintiffs have not detailed how Daza's conduct constituted intentional interference with their use and enjoyment of the Property.

Punitive damages

may be recovered upon a proper showing of malice, fraud, or oppression by clear and convincing evidence. (Civ. Code § 3294(a).) Malice is defined as conduct intended to cause injury to a person or despicable conduct carried with a willful and conscious disregard for the rights or safety of human life. (Civ. Code § 3294(c)(1); Truman, supra, 191 Cal.App.4th at 63.) Oppression is defined as despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civ. Code § 3294(c)(2).) Despicable conduct is "conduct that is vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down upon and despised by ordinary people." (See Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) Fraud is defined as intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of depriving a person of property or legal rights, or otherwise causing injury. (Civ. Code § 3294(c)(3).)

A prayer for

punitive damages in a complaint must be supported by factual allegations. (Perkins v. Superior Court (1981) 117 Cal.App.3rd 1, 6.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that

parties acted with malice, fraud, or oppression. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.) The complaint must adequately plead ultimate facts that, when read in isolation and apart from conclusions of fact and law, ought to describe a state of mind or motive which would sustain an award for punitive damages. (Perkins, supra, 117 Cal.App.3rd at 6.)

At issue

is whether, when stripped of conclusory descriptors, the allegations in the Complaint support a finding that the Defendants acted with malice, fraud, or oppression. The allegation that Defendants “had advanced knowledge of the unfitness of the agent . . . [who] acted with conscious disregard” without more is conclusory. (Complaint ¶ 16.) The Court’s analysis turns on the allegation that Daza refused to change any course of action or make repairs after the written notices by the County of Los Angeles. (Complaint ¶ 19.) Plaintiffs allege the Property and Defendants have been cited multiple times for violations of the California Health and Safety Code and the Los Angeles Municipal Code. (Complaint ¶¶ 20, 26.) Plaintiffs further allege that Defendants were notified of the alleged uninhabitable conditions, yet Defendants failed to correct the conditions. (Complaint ¶ 35.) Plaintiffs also allege that, after the numerous citations by the City of Los Angeles, including dates the Housing Department issued Notices and Orders to Comply. (Complaint ¶ 21), and when Los Angeles ordered Defendants to complete a program for their failure to correct the cited habitability violations (Complaint ¶ 23), Defendants retaliated against Plaintiffs by harassing them (Complaint ¶ 36).

As

alleged, Daza, and for the purposes of the joinder, Trustee Jess, knew of the uninhabitable conditions and/or the numerous citations at the Property and took no action. As pled, the Complaint does not simply allege negligence, but goes further to allege Defendants had knowledge of the uninhabitable conditions, were cited, ignored the citations, and instead of correcting the violations resorted to harassing the Plaintiffs. Punitive damages are appropriate if the defendant’s acts are in blatant violation of law. (Tomaselli, supra, 25 Cal.App.4th at 1287.) As alleged, the Defendant’s knowledge of uninhabitable conditions and failure to remedy them can satisfy the “conscious disregard” requirement. If the Defendants harassed the Plaintiffs after failing to comply, in aggregate, such conduct can rise to “despicable conduct.” (Civ. Code § 3294.) Thus, the allegations of Defendants’ pattern of ignoring municipal citations while maintaining knowledge of uninhabitable, hazardous conditions, conduct, and harassing vulnerable Plaintiffs may rise to despicable conduct carried out

with a willful and conscious disregard for the rights or safety of human life.
(See Lackner v. North (2006) Cal.App.4th 1188, 1212.) Thus, the
allegations in the Complaint as to punitive damages are sufficiently plead.

Conclusion

Defendant Daza's Motion to Strike is denied.

Date: July 28, 2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court